

Tentative Rulings for August 5, 2026 Department 4

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 4 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 533 0910**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2304714	DELEO 28, LLC VS KB HOME COASTAL, INC.	DEMURRER ON 2ND AMENDED COMPLAINT FOR OTHER REAL PROPERTY (OVER \$25,000) OF DELEO 28, LLC BY PAINTED HILLS COMMUNITY ASSOCIATION

Tentative Ruling:

OVERRULE the demurrer to the Second Amended Complaint ("SAC"). Defendant Painted Hills Community Association ("Painted Hills") to file an Answer within 10 days of this order.

Plaintiff alleges in the SAC that the improvements constructed by KB Home Coastal, Inc. ("KB") have caused an unpermitted concentration of drainage flows, including untreated urban runoff, onto and across the Deleo Property, causing downstream property damage to the Deleo Property. Painted Hills now demurs to the first cause of action for breach of easement in the SAC for uncertainty and to the fourth cause of action for negligence, as barred by the three-year statute of limitation for negligence actions under CCP § 338.

Here, the SAC alleges that the Original Easement granted KB, and the other property owners, a nonexclusive perpetual easement appurtenant in, to, over and across the portion of the Deleo Property "for the purpose of construction, use and maintenance of manufactured slopes, landscaping and related improvements." "The improvements constructed pursuant to the easements were to be maintained by the party installing such improvement, until such maintenance is accepted by a public agency, or a homeowners association, after which acceptance the constructing Party shall be relieved of any further maintenance responsibility for the improvements so accepted."(SAC Para.16) It is alleged that Painted Hills and co-Defendant Canyon Oaks HOA are successors-in-interest to KB as to their rights and obligations under the Original Easement and the First Amendment to the easement. (SAC Para.30) These allegations are sufficient. Here, although the facts are not so clear as to the manner in which the maintenance obligations over the drainage facilities were transferred to Painted Hills, it can be reasonably inferred that once the individual lots in the subdivision were sold off to homeowners, the easement rights and obligations were transferred to the new owners whose interests were represented by the homeowner's association.

The demurrer is overruled as to the negligence cause of action because the drainage flow and urban runoff damages constitute a continuing nuisance. The continuance of the nuisance on the Deleo Property gives the Deleos the right to bring successive actions against Defendants until the nuisance is abated. (*Tracy v. Ferrera* (1956) 144 Cal.App.2d 827, 829.) The action is not time barred by CCP § 338.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2304714	DELEO 28, LLC VS KB HOME COASTAL, INC.	MOTION TO STRIKE COMPLAINT ON 2ND AMENDED COMPLAINT FOR OTHER REAL PROPERTY (OVER \$25,000) OF DELEO 28, LLC BY PAINTED HILLS COMMUNITY ASSOCIATION

Tentative Ruling:

DENY

The challenged allegations are essential to Plaintiff's breach of easement claim and are therefore not subject to be stricken under CCP § 436. Plaintiff's allegations in Paragraphs 16 and 31 of the SAC reflect the essential terms of the easement which is alleged to have been breached by Defendants and hence are not subject to be stricken as improper or irrelevant matters.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2402193	COUNTY OF RIVERSIDE ON BEHALF OF RIVERSIDE UNIVERSITY HEALTH SYSTEM VS ANTHEM BLUE CROSS LIFE AND HEALTH INSURANCE COMPANY	MOTION TO CONSOLIDATE BY BLUE CROSS OF CALIFORNIA.

Tentative Ruling:

GRANT

4.

CASE #	CASE NAME	HEARING NAME
CVRI2501956	TECHNOLOGY INSURANCE COMPANY INC. VS KARAS FOOD INCORPORATED	MOTION TO APPOINT RECEIVER ON COMPLAINT

Tentative Ruling:

GRANT

5.

CASE #	CASE NAME	HEARING NAME
CVRI2501956	TECHNOLOGY INSURANCE COMPANY INC. VS KARAS FOOD INCORPORATED	MOTION FOR ASSIGNMENT ORDER RE: RIGHTS TO PAYMENT OF MONEY DUE OR TO BECOME DUE [PAYMENT RIGHTS FROM ACTIVITIES OF FOOD AND BEVERAGE RETAILER] BY TECHNOLOGY INSURANCE COMPANY INC.

Tentative Ruling:

GRANT